

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

TOYOTA DE PUERTO RICO CORP., *Complainant*

v.

PUERTO RICO PORTS AUTHORITY, CROWLEY PUERTO RICO SERVICES, INC., AND OCEANIC GENERAL AGENCY, INC.,
Respondents.

DOCKET NO. 19-02

Served: October 28, 2020

BEFORE: Erin M. WIRTH, *Chief Administrative Law Judge.*

ORDER REQUIRING STATUS REPORT

On January 3, 2020, an order was issued staying this proceeding until a decision was issued by the First Circuit in the related *Dantzler* case and requiring the parties to file a joint status report within fifteen days of a decision being issued in the *Dantzler* case.

On May 1, 2020, the First Circuit issued a decision in the *Dantzler* case, finding that the plaintiffs failed to establish constitutional standing and that the Puerto Rico Port Authority was entitled to sovereign immunity in its performance of the inspection functions at issue. *Dantzler, Inc. v. Empresas Berrios Inventory & Operations, Inc.*, 958 F.3d 38, 50 (1st Cir. May 1, 2020). On May 29, 2020, a petition for rehearing was filed in the *Dantzler* case. On June 17, 2020, an order was issued staying this proceeding until a firm and final decision is issued by the First Circuit in the related *Dantzler* case.

It has been almost six months since the May 1, 2020, First Circuit decision in the *Dantzler* case. The parties are instructed to discuss the status of this proceeding and any potential for settlement. The parties shall file a joint status report indicating the status of the *Dantzler* petition for rehearing and whether they have discussed settlement but not their settlement positions. As ordered previously, within fifteen days of a decision being issued by the First Circuit in the *Dantzler* case, the parties must file a joint status report including a copy of the decision and a proposed schedule.

For the reasons stated above, it is hereby **ORDERED** that the parties file a joint status report by November 9, 2020.



Erin M. Wirth
Chief Administrative Law Judge